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KMJ FINANCE AND INVESTMENTS LIMITED (“Kampuni”) MKATABA WA MKOPO WA MALIPO YA BIMA

HIVYO MKATABA HUU NA DHAMANA VINASHUHUDIA:

Kwa kuzingatia kwamba Kampuni italipa kiasi chote cha bima kwa Mtoa Bima (kama ilivyojafanuliwa katika Jedwali lilloambatanishwa hapa) kwa niaba ya Mkopaji, zikiwa ni kiasi kinacholipwa na Mkopaji kwa Mtoa Bima chini ya bima yake (kama ilivyojafanuliwa katika Jedwali lilloambatanishwa hapa):

1.Wajibu wa mkopaji

a. Anahidi kulipa kwa Kampuni, kwa wakati bila kudiawa, kukata au kupunguza chochote, marejesho ya mwezi kwa kama yaliyoelekezwa katika jedwali lilloambatanishwa hapa, na kwa namna iliyoelekezwa humo na kutoa idhini kwa Kampuni kutoza akauti yake kiasi cha Bima, makato mengine pamoja na riba iliyoinishwa hapa. Marejesho mawili ya mwanzo yatalipwa siku ya kusiniwa kwa Mkataba huu. Marejesho yatayofuata yatalipwa mwanzoni mwa kila mwezi.

b. Anahidi kulipa Kampuni pamoja na rejesho stahili riba kwenye rejesho (marejesho) au sehemu ya rejesho litakalo kwa halijalipwa baada ya muda wa kulipa kwa kiwango cha asilimia 12 kwa mwaka juu ya Kiwango cha msingi cha Kampuni kilichopo sasa au kwa kiwango vingine chochote kitakaloamuliwa na Kampuni na Mteja kulijishwa (ndani ya ukomo unaoruhusiwa na sheria pasipo haja ya kupata kibali cha Mkopaji juu ya kiwango hicho); riba hiyo italimbikiwa kutoka siku moja hadi nyingine (na vilevile kuanzia siku ya hukumu yoyote) mpaka hapo itakapokuwa imelipwa yote kilamilifu.

c. Anajidhamini kwa Kampuni kwamba bima yake ni halali na Mkopaji anahidi Kampuni kwamba bima yake itabaki kuwa halali kipiindi chote ambacho Mdaiva atakuwa na mkojo kutoka kwa Kampuni. Na ili kuwzesha hilo, Mkopaji anabitishisha kuwa hatasitisha Bima yake bila Kampuni kuridhina au hatafanya lolote au kukitaka chochote kitakachofanya Bima iweze kufutwa ama kufutika au kutokana na hayo malipo ya bima yakaonezekana au tozo nyingine zikadaiva (labda iwe Mkopaji atalipa hima tozo za nyonezea au bima yake Mtoa d. Anabitishisha na Kampuni kwa kutoa salio la mkojo wake litakasimika kulipwa mara moja kwa kudiawa na Kampuni pamoja na riba iliyozaliwa juu yake kwa kiwango kilichoelekezwa hapo juu, kutoka siku ya kudiawa kufanya hivyo endapo Mkopaji atakuika lolote kati ya shuruti za Mkopaji zilizozinishwa hapa au katika Bima ama iwapo mkhaloto wa kufungwa au Mdaai ya Kufitika yamdfunguliwa dhidi ya Mkopaji, au endapo itakuwa kuwunja sheri kwa Kampuni au Mkopaji kuendelea na Mkataba huu, ama kutakwepo na mazingira ambayo kwa maoni pekee ya Kampuni yana athari hasi juu ya uwezo wa Mkopaji kuteleza shuruti zake kama zilivyowe kwa hapa au chini ya Bima yake. Na Mkopaji anabitishisha kwamba Kampuni itakuwa huru, baada ya kutoa ilani rasmi ya kudai malipo kama ilivyosemwa hapo juu, kushitisha Bima yake mara moja na kupooza rejesho la malipo ya bima (kama yapo) kutoka kwa Mtoa Bima na Kampuni itakuwa na haki ya kulipwa salio (kama lipo) katika riba ya akauti na tozo kutoka kwa Mkopaji kwa njia ya madai ya haraka dhidi ya deni lililolipwa.

Taarifa au Cheti cha Kampuni kinachooresha kiasi kinachodaiwa kitakuwa; alimadi hakutakuwa na kosa la wazi, cha kuwabana wote na cha mwisho dhidi ya Mkopaji.

e. Anamruhusu na kumwagiza Mtoa Bima kwa njia ya kusini Mkataba huo:

i. Kusajili haki ya Kampuni ya kusitisha Bima husika kama mipilaji pamoja na haki ya Kampuni ya kupokea marejesho yatokanayo na malipo ya Bima. Na Mkopaji anazidi kuagana na Kampuni kwamba atawezesha Mtoa Bima kuzingatia ruhusa iliyotolewa na hata hivyo, Mkopaji anabitishisha kwamba atashika fedha yoyote itakayolipwa kwake na Mtoa Bima chini ya Bima kwa uaminifu kwa ajili ya Kampuni na mara moja atakapozipokea atazisilimisha fedha hizo kwa Kampuni ili ziwekwe wenye Akauti. Wajibu huu utendelee mpaka Kampuni itakapotibitisha kwa maandishi kwamba Akauti imekombolewa kilamilifu.

ii. Kularifu Kampuni mara itokeapo ajali itakayopelekea gari iliyowe kwa Bima kufutiwa mbali na kuwasilisha Taarifa ya Polisi, picha za ajali na vocha ya kutolewa kwa Kampuni kwa ajili ya utekelezaji sahihi utakopelekea Kampuni iweze kurejeshewa kiasi cha Bima kilicholipwa kwa usawa kutoka siku ajali hiyo ilipotokea.

f. Kwa mkataba wa bima ya Afya, mfunafika/ mikopeshwaji atanufaika na huduma za matibabu kwa kiasi alicho changia pamoja na faida zilizo kwisha kuainishwa kwenye mkataba Pia Mikopeshwaji akishindwa kulipa marejesho ili itamfanya bima yake kufutwa na kulipia gharama za matibabu alizo kwisha kutumia kabla ya kulipa marejesho, kama ilivyo ainishwa kwenye mkataba huo.

g. Atalipa Ushuru wote Stempu, Kodi ya Ongezeko la Thamani, tozo na kodi nyingine (kama zipo) ambazo zitatazwa juu ya Mkataba huu au nyaraka nyingine zozote ambazo zimesainiwa kutokana na Mkataba huu (tozo na kodi hizo zitazongezwa katika Akauti yake). Mkopaji anakubali kufidha Kampuni atakapodaiwa gharama zote zikiwamo ada za kisheria zilizozingia na gharama wote za mazingumzo na matayarisho ya Mkataba huu, na gharama zote zitakozingia na Kampuni katika kufungwa madai Mahakamani ili kukusanya au kupata marejesho yoyote yanayotafahiki kulipa kwa Kampuni chini ya Mkataba huu au vinginevyo katika kulinda na kuteleza haki zake chini ya Mkataba huu.

h. Anateua Kampuni kuwa Wakili wa Mkopaji na katika jina lake na kwa niaba yake kuteleza na kuhakikisha, matendo ama vitu ambavyo Mkopaji angeweza kuteleza na kufanya chini ya Bima yake ikiwa ni pamoja na, bila ukomo, nguvu ya kusitisha Bima na kutoa cheti safi na kutolewa kwake kwa ajili ya rejesho la bima iliyolipwa au kiasi chake, kilichopokelewa na Mkopaji wakati wa kusitisha Bima au fidia nyingine yoyote iliyolipwa chini ya Bima. Hapa sasa Mkopaji anabitishisha matendo au mambo yote yaliyofanyika na Kampuni katika kuteleza nguvu zilizotolewa na anadondole kufumia kokote kutoka kwa wahusika wote waliowezesha nguvu kama hizo. Vilevile Mkopaji anabitishisha na kukubali kwamba bima au sehemu ya bima itakayorejeshwa kama ilivyosemwa awali, au fidia yoyote iliyolipwa kwa Kampuni vitatumika kwanza kuhitisha Akauti na alaki (kama ipo) talipwa kwa Mkopaji.

i. Anakubali kwamba iwapo Kampuni itaomba hivyo, Mkopaji atatoa kwa Kampuni, kwa njia ya dhamana, rehani ya kisheria dhidi ya Bima au kuihamisha Bima kwa Kampuni; na Mkopaji anakubali kulipa gharama zote ikiwa ni pamoja na ada za kisheria zitakozolipwa kama mateoke.

j. Anabitishisha kuwa kushindwa ama kutelewa kwa Kampuni kuteleza nguvu au haki yake yoyote chini ya Mkataba huu hakutaharibu nguvu au haki hiyo ama kuondolewa kwake; wala uteleza wa nguvu na haki moja hakutazua uteleza mwingine wa nguvu na haki hazi ama nyinginezo zozote.

k. Anabitishisha Kampuni kwamba Mkopaji ana uwezo wa kuingia katika makubaliano yanayotazamiwa kwa Mkataba huu, si kwa kusiniwa kwake wala utekelezaji wa shuruti na masharti ya Mkopaji katika Mkataba utazua mgogoro au kuteleza uvunjifu wa sheria, karuni, rehani, makubaliano au waraka wowote ule.

l. Kampuni yaweza wakati wowote hata pasipo kutoa haki kwa Mkopaji kuunganisha ama kweka pamoja akauti zote za Mkopaji au yoyote na Kampuni, na kufuta au kuhamisha fedha yoyote itakayokuwa kwenye akauti moja ama nyinginezo kulipia wajibu za kifedha au madeni ya Mkopaji kwa Kampuni iwe madeni hao ni ya sasa, yajayo, yaendayo sambamba, ni ya msingi, ya ubia au ya wengi na Mkopaji pasi na shaka anaoondoa haki yoyote awezayo kuwa nayo kwa kadiri sheria inayoruhusu, kuhusiana na dai lolote ajualo au atakalo kwa nalo dhidi ya Kampuni wakati wowote baadaye.

m. Anabitishisha kwamba endapo hundi yoyote atakayowasilisha kwa Kampuni haitalipwa na kupelekea kutolipwa kwa rejesho lolote, Bima inayolipwa na Kampuni itafutwa.

n. Anabitishisha ya kuwa Kampuni ina haki ya kutoa riba inayotumika dhidi ya mkojo mwanzoni mwa kukopesha kama iliyokubaliwa kuhusiana na marejesho. Riba itapaswa kulipwa kilamilifu bila makato yoyote inganifu au punguzo hata kama mkojo wote umelipwa kilamilifu na Mkopaji kabla ya muda wa kuiva uliupangwa.

o. Anahidi kutoka nyaraka zozote au zote na/au taarifa ambazo Kampuni itaona ni za lazima kwa madhumuni yanayohusiana na maombi haya na/au madhumuni mengine yanayohusua kudumisha uhusiano na Kampuni na/au dhumuni lolote lililo halali kisheria.

2. Mtoa Bima (Mdhadini):

a. Anakubaliana na Kampuni kwamba Bima ipo hai na kwamba vipengele vilivyoinishwa katika jedwali kuhusu Bima hiyo ni sahihi.

b. Hapa, bila masharti, anadhamini na kama mdhamini wa msingi anajitoa na kuahidi kuanzia Bima ikisitishwa ama kufutwa na Kampuni au Mkopaji, Mtoa Bima atalipa kwa Kampuni mara moja kiasi cha bima kilichowanishwa kuanzia siku Bima ilipositishwa ama kufutwa. Mtoa Bima atalipa kwa Kampuni, na katika kila tukio, si zaidi ya siku saba (7) kuanzia siku ilipotolewa dai la kwanza la rejesho la bima iliyowanishwa (bima inayorejeshwa) ya kiasi stahili cha Kampuni kutoka kwa Mtoa Bima (kama ilivyojaliwa na Kampuni) chini ya bima ilivyosemwa hapo juu au Bima nyinginezo zilizozingiramiwa na Kampuni, bila makato yoyote au maridhiano yoyote yawayo. Bima inayorejeshwa itakotolewa kama ifuatavyo:

c. Kiasi cha bima inayorejeshwa kilikotolewa kama ifuatavyo

Kiasi cha bima inayorejeshwa kwa kiasi chote kilichogamiwa na **Kampuni** kuzidishwe mara (siku 365 – idadi ya siku kutoka siku Bima iliyolipwa mpaka siku ilipodaiwa) siku 365.

d. Kama bima inayorejeshwa hitalipwa kwenye siku ambayo inapaswa kulipwa kama iliyoelekezwa hapa, tutakuwa tayari kulipa Kampuni riba dhidi ya kiasi chake kuanzia siku ya ucheleweshwaji mpaka Kampuni itakapopokea malipo kilamilifu kwa kiwango cha asilimia 12 kwa mwaka au kwa kiwango kingine ambacho bima mawaka yake yenyewe, na tunabitishisha riba itakotolewa kwa kigezo cha mwaka wenye siku 365 na itaongezwa kwenye limbikizo kila mwezi hadi lilipwe kikamilifu.

e. Anajiaminisha kwamba haki ya kufuta bima au kulipa bima inayorejeshwa itafuta na kuwa juu ya shuruti kinzani katika bima, na bima inayorejeshwa itachukuliwa kutakiwa kurejeshwa hata kama madai yametoewa au malipo yamefanyika chini ya bima hadi pale malipo yatakapofanywa kwa Kampuni.

f. Itakopfutwa bima inayozungumziwa hapa, Mtoa Bima atazingatia na kuteleza masuala yote yanayohitajika pamoja na sheria za kawaida zinazostahili kuteleza katika ufutwaji wa bima ikiwa ni pamoja na sharti la kutoa taarifa kwa umma kuhusu ufutwaji wa namna hiyo.

g. Kwa bima ya afya kama mkopaji atunaja makubaliano kampuni ya bima itarudisha mara moja salio la bima kwa kampuni, deni lolote la mkopaji ni wajibu wa kampuni na bima kwa mujibu wa vigezo vya bima ya bima.

h. Haki ya Kampuni dhidi ya bima inayorejeshwa pamoja na riba yake kwa mipilaji ama mwasilifu itatambuliwa katika Bima kwa njia ya kutibitisha kutakotolewa kufuatia kusiniwa kwa Mkataba huu na Mtoa Bima atalipa Kampuni uthibisho wa maandishi kwamba kufungu kidogo hiki kimezingatwa kama akidaiwa kufanya hivyo.

3. Dhamana hii na Kinga:

a. Haliatahirwa, kuondolewa ama kupunguza kwa Kampuni au Mkopaji kufanya tendo ama kutofanya lolote ambalo kama si kwa kuwepo kwa aya ili lingermwondolea Mdhadini lakini lisingathiri au kumwondolea Mtoa Bima dhima iwapo angekuwa mdaiva mkuu.

b. Itabaki kuwa na nguvu hadi kiasi cha kinachopaswa kulipwa kwa Kampuni itaelekea na kukopesha Bima, na pale ambapo dhima inayotokana na mkojo itakoma isipokuwa tu kwa kiasi kile ambacho Kampuni itakuwa lishadai awali kutoka kwa Mtoa Bima kwa maandishi na badhi hakijalipwa.

c. Halitusi dhima zilizozingia baada ya tarehe ya Mtoa Bima kupokea taarifa ya kusitishwa kwa bima kutoka kwa Kampuni na kwa kutoa taarifa kama hiyo, Kampuni itakuwa huru kulipa fedha yoyote ama dhima vilivyodhaminiwa na Mtoa Bima na kutoa fedha kuhusiana na dhima nyingine zozote zilizodhaminiwa.

d. Itaongozwa na kutafiriwa kwa kila hali kwa kuzingatia sheria za Jamhuri ya Muungano ya Tanzania, na wahusika hapa wanajifunga na kujiweka chini ya mamlaka isiyoye kipekee ya Mahakama za Tanzania.

e. Majukumu yalio katika dhama hii yatakuwa juu ya mengine yoyote yaliyotolewa na Mtoa Bima katika nyaraka nyingine zozote.

4. KWA TAARIFA

Mkopaji/Wakopaji ana/wanakubali na kuridhina kwa Kampuni inaweza:

a. Kuweka wazi habari zozote zilizo kwa Kampuni kuhusiana na maombi haya na maelezo ya akauti kwa yeyote na wakala wote waliotumiwa na Kampuni wakati wa kuendesha akauti hiyo pamoja na, bila kukomea hapo; wakala walioteuliwa na Kampuni kusimamia akauti hiyo.

b. Kampuni yaweza kutoa taarifa yoyote iliyoye kwenye Kampuni kuhusu maombi haya ama akauti kwa wahusika wengine (ikiwa ni pamoja na, bila kukomea hapo, taasisi zilizozidinishwa chini ya sheria ya mabeki ya Jamhuri ya Muungano ya Tanzania na Ofisi za Mikopo) iwapo Kampuni itaona taarifa kama hiyo ni ya lazima kwa ajili ya kutathmini maombi yoyote yaliyotewa mbele ya Kampuni na waombaji walio na mkojo wa Kampuni au kwa madhumuni mengine yalio ndani ya sheria husika.

c. Kampuni yaweza kutoa taarifa yoyote iliyoye kwake kuhusiana na akauti hii ikiwa ni pamoja na maelezo kuhusu mkojo wa pamoja na ya Mkopaji kwa yeyote kwa madhumuni ya kutathmini kustahili kwa mwo/waombaji au kwa madhumuni mengine halali kisheria.

d. Mkopaji anakubali kwamba Kampuni inaweza kupata taarifa yoyote kuhusu kutoka kwa yeyote ikiwa ni pamoja na taasisi zilizozidinishwa chini ya sheria ya Benki Kuu na ya Mabeki na Taasisi za Fedha au za Ofisi za Mikopo chini ya sheria za Jamhuri ya Muungano ya Tanzania, ikiwa kwa maoni ya Kampuni, taarifa kama hizi ni za lazima kwa ajili ya kutathmini maombi yoyote yaliyotewa kwa Kampuni na waombaji au kwa madhumuni mengine yoyote kama yaliyoy amriwa na sheria yoyote iliyoyote.

e. Atatoa taarifa zozote zilizo kwenye Kampuni kuhusiana na maombi haya, ikiwa ni pamoja na maelezo ya akauti na mwenye akauti kwa kuhusika yeyote au taasisi chini ya sheria za kimataifa au sheria nyinginezo zozote ili kuzingatia majukumu ya kisheria zinazohusiana na shughuli za kibeki.

5. Mawasiliano

Matangazo yote, barua na mawasiliano mengine kutoka kwa Kampuni yatapeleka kwa kwenye anwani ya posta au ya barua pepe iliyotolewa mara ya mwisho na mteja, na tarehe iliyoye kwenye nakala ya Kampuni ya mawasiliano itachukuliwa kuwa ndiyo tarehe ya kutumwa kama hakuna uthibisho wa vinginevyo. Mawasiliano yoyote ya maandishi kutoka kwa Kampuni kwenda kwa Mteja ikiwa ni pamoja na, bila kuishia hapo, taarifa yoyote iliyotolewa kwa kufuta masharti na shuruti hizi itachukuliwa kwa imepokelewa na mteja, iwapo ilipeleka, basi tarehe na muda wa kupokelewa, na kama imepostwa, itatosh kutibitisha kwamba barua iliyokuwa na mawasiliano husika ilikuwa na anwani sahihi na ililipwa stempu. Mteja atakuwa hana madai yoyote kwa Kampuni dhidi ya uharibifu utaokotokana na ucheleweshwaji, kutelelwana, uharibifu, marudio au makosa mengine yoyote kutokana na uwasilishaji wa mawasiliano yoyote, yawe yanatoka kwa mteja, Kampuni au yeyote, kwa kupeleka kwa mkono, posta, nukusi, simu, barua pepe au njia nyingine yoyote ya mawasiliano.

Kampuni haitawajibishwa kwa kiasi chote kuwasilisha au kupokelewa kwa mawasiliano na mteja na au kufichuka kwa mawasiliano hayo kwa wengine ambapo mteja alishindwa kutoa maelezo sahihi ya anwani yake ya posta au ya barua pepe, ikiwa ni pamoja na kusitishwa maelezo ya anwani husika au kwa kufichuka kwa namna iliyoye ya uwezo wa Kampuni, kama vile kupitia uovu au kupatikana kwa wengine wasioruhusiwa ambao anwani zilizotolewa si za kwao au ambapo anwani ni ya shirika baina ya wengine na mteja.

Mteja hatakuwa na madai yoyote kwa kampuni kwa hasara itayosababishwa na kupotea kwa ripoti ya hasara, kutelelwana, kudiwa au kutokuwa na usahihi wa maelezo ya kuwakilisha mawasiliano iwe kutoka au kwenda kwa mteja, kampuni au mtu mwingine yeyote, kwa mkono, posta, fax, simu, telex au njia nyingine yoyote ya mawasiliano

Kampuni haitahusika na kushindwa kufichua au kupokelewa mawasiliano kwa mteja au kutolewa kwa mawasiliano kwa watu wengine kama mteja hakutoa maelezo sahihi ya anwani zao na barua pepe, ikiwa ni pamoja na kushindwa kuleta madadiliko ya anwani nje ya uwezo wa kampuni, kama mtu mwingine kuweza kuingia kwa anwani ambayo siyo yake ikiwa mteja anatumia na watu wengine.

6. Dhima ya pamoja na kwa usawa

kama mkopaji ni zaidi ya mtu mmoja, hivyo majukumu yote ya upande wa mkopesaji yatawajumuisha wote pamoja na wote watajumuisha kwenye madai yatokanayo na matumizi ya huduma, na malipo yoyote ya mmoja wao hayatopunguza madeni ya watu wengine

7. Uhalali wa Nyaraka

Kampuni haihusika na uhalali, uhalali, kawaida au thamani za nyaraka ikiwa ni pamoja na, bila kuishia kwenye stakabadhi na shuruti za bima.

8. Hakuna Kuondolewa

Si kuchelewa kwa upande wa Kampuni katika kuteleza haki yake yoyote chini ya masharti na shuruti hizi kutakakochukuliwa kama kuondolewa kwa haki hizo.

9. Mamlaka ya Mahakama

Wahusika hapa wanajisilimisha chini mamlaka ya sheria za Jamhuri ya Muungano ya Tanzania endapo mgogoro wowote utazuka dhidi ya masharti na shuruti zote zilizo katika Mkataba huu.

10. Kubadilisha na kusitisha uhusiano

Kampuni inaweza kubadilisha au kusitisha uhusiano wake na Mkopaji na Mtoa bima wakati wowote, baada ya kuwapa taarifa. Bila kukwazika na yaliyotangulia, Kampuni yaweza kufuta malipo ya awali iliyoyatoa, na kama mateoke, ikataka malipo ya deni lililosalia yafanyike baada ya kutoa taarifa ya siku saba (7) au fupi zaidi kama Kampuni itaoyamua.

11. Fungamano

Imekubaliwa kuwa Mkataba huu hataanzana wala kufunga Kampuni mpaka hapo itakaposiniwa na Kampuni na Wahusika wengine katika Mkataba huu. Vilevile imekubaliwa kwamba mgogoro au kutelelwana kokote kutakakotokoa baina ya wahusika katika Mkataba huu au kuhusu Mkataba, utekelezaji wake, muundo au tafiri yake kutawasilishwa kwenye usuluhishi mbele ya Msuluhishi mmoja kwa mujibu wa vifungu vya Sheria ya Usuluhishi (RE 2002) au marekibisho yoyote ama vifungu vipya; ambaye uamuzi wake utakafanywa chini ya sheria hiyo utakuwa wa mwisho na utawafunga wahusika wote katika Mkataba.

12. Kukubali

Mimi/Sisi ni/tumesoma na kuelewa masharti na shuruti zinazotawala Mikopo wa Malipo ya Bima unaoitolewa na KMJ Finance and Investments Limited na mimi/sisi na/tunakubali kwamba mikopo huu utatolewa kwa ridhaa ya Kampuni pekee na hivyo ni/tunakubali kuilinga Kampuni kwa gharama zangu/zetu dhidi ya upeuteu au madai yoyote yatakayotokana na mkojo huo. Mimi/Sisi na/tunabitishisha ya kwamba habari zilizo hapa juu ni sahihi na za kweli. Mimi/Sisi na/tunazikubali na ni/tutazishika. Mimi/Sisi na/tunabitishisha pia kwamba ni/tumepokea habari zote zinazohusu mkojo huo. Mimi/Sisi pekee yangu/yetu ni/tumehakiki masharti na shuruti kama zilivyoinishwa hapo juu, na kila ilipolazimu tulishauriwa na watu wengine wasio maafisa wa Kampuni. Mimi/Sisi nina/tunaelewa ya kuwa Kampuni inahifadhi haki yake ya kukataa maombi haya bila kutoa sababu zozote.



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KMJ FINANCE & INVESTMENTS LIMITED
INSURANCE PREMIUM FINANCING AGREEMENT

NOW THIS AGREEMENT AND GUARANTEE WITNESSETH:

In consideration of the Company paying the premium amount to the insurer (as defined in the schedule hereto) on behalf of the Borrower being the amount payable by the Borrower to the insurer under the policy (as defined in the schedule hereto):

1. The Borrower hereby:

- Covenants to pay to the Company, punctually and without any prior demand or deduction or set off whatsoever, the consecutive monthly installments specified in the schedule hereto and in the manner therein set out and to give effect there to the Borrower and to debit the account with the premium amount and any other charges and interest as herein specified. The first two installments shall be paid on the signing of this agreement. Subsequent installments shall be payable monthly in advance.
- Covenants to pay to the Company in addition to the applicable installment interest on any installment(s) or part installment which remains unpaid after becoming due at the rate of 12% per annum above the prevailing Company's base rate or at such other rate of interest determined by the Company and advised to the Customer (within the limits permitted by law and without needing to seek the Borrowers approval thereof) such interest to accrue from day to day (as well as after any judgment) until repaid in full.
- Warrants to the Company that the policy is valid and the Borrower covenants to the Company that the policy shall remain valid throughout the course of the Borrower's indebtedness with the Company. And to give effect thereto, the Borrower under takes not to cancel the policy without the Company's consent or do any act or commit any default whereby the policy may become void or voidable or whereby an increased premium or charge may become payable (unless the Borrower promptly pays the additional charge or premium to the insurer). Provided that: in case of default by the Borrower on any of the Borrower's obligations herein it will be lawful d. Confirms and acknowledges that the outstanding balance on the account shall immediately become due and payable on demand by the Company with interest accruing thereon at the rate specified above from the date of demand if the Borrower makes default on any of the Borrower's obligations hereunder or under the policy or if winding up or a petition for Bankruptcy is filed against the Borrower or if it becomes illegal for the Company or the Borrower to continue with the present arrangement or if there are circumstances which in the sole opinion of the Company may have a material adverse effect on the ability of the Borrower to perform the Borrowers obligations hereunder or under the policy. And the Borrower confirms that the Company shall be at liberty, upon making formal demand as aforesaid, to terminate the policy forthwith and to receive refundable premium (if any) from the insurer and the Company shall be entitled to recover the outstanding balance (if any) in the Account interest and charges from the Borrower by summary procedure as a liquidated debt. A statement or certificate of the Company as to the amount outstanding shall, in absence of manifest error, be binding and conclusive as against the Borrower.

e. Authorizes and instructs the Insurer through the signing of this Agreement:

i. To register the Company's right to terminate the policy as a financier as well as the Company's right to terminate the policy and to receive the refund on the premium amount. And the Borrower further covenants with the Company that, the Borrower shall procure that the Insurer complies with the aforesaid authorization and in any event, the Borrower confirms that the Borrower shall hold any monies paid to the Borrower under the policy by the insurer in trust for the Company and shall immediately upon receipt surrender such monies to the Company to be credited to the Account. This obligation shall subsist until the Company confirms in writing that the account has been redeemed in full.

ii. To promptly inform the Company in occurrence of accident event that renders the insured vehicle written off and submit a police report, photos of accident and discharge voucher to the Company for proper execution so that the Company can be refunded the paid premium on pro-rata basis from the date of occurrence of the said accident.

f. In the case of a Medical Insurance policy, personally guarantees the sum insured, including but not limited to the benefits payable under the policy. Any default by the Borrower shall automatically render the Borrower liable for repayment of the amount of benefit already used by Borrower under the policy.

g. Undertakes to pay all stamps duty, Value Added Tax, other duties and taxes (if any) to which this Agreement or any other document executed pursuant to this Agreement may be subject to (which duties and taxes will be debited to the Account). The Borrower further undertakes to reimburse the Company on demand all expenses including legal expenses incurred by the Company in negotiation and preparation of this Agreement and all expenses incurred by the Company in suing for or recovering any sum due to the Company under this Agreement or otherwise in protecting or enforcing its rights under this Agreement.

h. Appoints the Company to be the Attorney of the Borrower and in the name and on behalf of the Borrower to execute and do any assurances, acts and things which the Borrower ought to execute and do under the policy including without limitation the power to terminate the policy and to give good receipt and discharge thereof for the refund of the premium amount or any part thereof received by the Borrower on such termination or for any settlement paid under the policy. The Borrower hereby ratifies all acts or deeds done by the Company in exercise of the power herein conferred and absolves from blame any and all parties giving effect to such power. The Borrower further confirms and agrees that any premium or part of premium refunded as aforesaid or any settlement paid to the Company will first be applied towards redeeming the Account and the balance (if any) released to the Borrower.

i. Undertakes that if the Company shall so request, the Borrower shall execute in favour of the Company, by way of security, a legal assignment or mortgage over the policy or cede the policy to the Company and the Borrower undertakes to meet all costs and expenses including the legal fees payable as a result.

j. Confirms that no failure or delay by the Company in exercising any right power or privilege under this Agreement shall impair the same or operate as a waiver for the same nor shall any single or partial exercise of any right power or privilege preclude any further exercise of the same or the exercise of any other right, power or privilege.

k. Warrants to the Company that the Borrower has the power to enter into the transaction contemplated by this Agreement and that neither the execution hereof nor the performance or observance of the Borrower's obligations hereunder will conflict with or result in any breach of any law, regulation, mortgage, agreement or other instrument whatsoever.

l. The Company may at any time and without notice to the Borrower combine or consolidate all or any of the Borrower's Accounts with the Company and set off or transfer any sum standing to the credit of one or more of those accounts in or towards satisfaction of any monies obligations or liabilities of the Borrower to the Company whether those liabilities be present, future, contingent, primary, joint or several and the Borrower expressly waives any rights that he may have, in so far as is permitted by law, in respect of any claim which he may know or at any time hereafter have against the Company.

m. Confirms that should any cheque remitted to the Company be dishonoured on presentation resulting in the non-payment of any installment(s) the subsisting policy(ies) being financed will be subject to cancellation.

n. Confirms that the Company is entitled to charge the applicable interest payable for the entire facility at the commencement of the facility as agreed upon with respect to the repayment. The interest shall be payable in full without any prorated deduction or rebate even when the facility is settled in full before the scheduled maturity period by the Borrower

o. Commits to provide any and all documentary and/or information that the Company will find necessary for the purposes connected to this application and/or any other purpose related to maintaining a relationship with the Company and/or any other lawful purpose.

2. The insurer (being the guarantor):

a. Covenants with the Company that the policy validly exists and that the details set out in the schedule regarding the policy are correct.

b. Hereby unconditionally guarantees and undertakes as primary obligor and covenants that upon cancellation or termination of the policy by the Company or the Borrower, the Insurer shall forthwith pay the Company the prorated refund from the date the policy is terminated or cancelled. The insurer shall pay the Company, and in any event, not later than seven (7) days from the date of first demand of the pro-rata refund (the Refundable premium) of the amount due to the Company by the insurer (as advised by the Company) under the aforesaid policy or policies financed by the Company, without any deduction or set off whatsoever.

c. The refundable premium shall be calculated as follows:

The refundable premium amount = the total amount financed by the Company multiplied by (365 days - number of days from date of premium payment to date of demand) 365 days

d. If the refundable premium is not paid on the date on which it is due as herein provided, we undertake to pay the Company interest on such sum for the period beginning on the date of default until the payment is received by the Company in full at the rate of 12% per annum or at such other rate as the Company may specify at its sole discretion and we confirm that such interest shall be calculated on the basis of a 365 day year and be compounded monthly until repaid fully.

e. Warrants that the right to cancel the policy and to pay the refundable premium shall override and prevail over any conflicting provisions in the policy and the refundable premium shall be deemed to be refundable notwithstanding that a claim has arisen or payment has been made under the policy unless the payment is made to the Company.

f. Upon cancellation of the policy hereunder the insurer shall comply with all statutory and other common law obligations resulting from such cancellation and including without limitation the provision of notice to any third party of such a cancellation where required.

g. In the case of a Medical Insurance cover, and upon default by the Borrower, the insurer will immediately refund pro rata the balance of the premium to the Company. Any liability by the Borrower/policy holder is the responsibility of the insurer as per the standard IPF terms and conditions.

h. The right of the Company to the refundable premium and its interest as financier or assignee shall be noted on the policy or by way of endorsement to be issued in respect thereof following the execution of this agreement and the insurer shall provide the Company written proof of compliance with this sub-clause upon demand.

3. This Guarantee and Indemnity:

a. Shall not be affected discharged or diminished by any act or omission by the Company or the Borrower which would but for this provision have exonerated a guarantor but would not have affected or discharged the Insurer's liability had the Insurer been a principal debtor

b. Shall continue in force until all the amount due to the Company on the premium financed has been paid and when all liability hereunder shall cease save to the extent the Company shall previously have called upon the Insurer in writing to pay specified monies payable then remaining outstanding

c. Does not extend to liabilities incurred after the date of receipt by the Insurer of notice of termination from the Company and on service of such notice the Company shall be at a liberty to pay off any monies or liabilities guaranteed by the Insurer and to provide cash cover in respect of any contingent liabilities guaranteed

d. Shall be governed and interpreted in all respects in accordance with the laws of United Republic of Tanzania and the parties hereto irrevocably submit to the non-exclusive jurisdiction of the Courts of Tanzania.

e. The undertakings contained in this guarantee shall override any other undertakings given by the Insurer in any other documents.

4. DISCLOSURE

The Borrower(s) agrees and consents that the Company may:

a. Disclose any information in the possession of the Company relating to this application and account details to any and all agents used by the Company in the course of the operation of the account including but not limited to agents appointed by the Company to manage the account;

b. The Company may disclose any information in the possession of the Company relating to this application and or account to any third parties (including but not limited to institutions licensed under the Banking Laws of the United Republic of Tanzania and Credit Reference Bureau) if in the Company's opinion such disclosure is necessary for the purposes of evaluating any application made to the Company by the applicant(s) maintaining an account with the Company or for other purposes but within applicable laws

c. The Company may disclose any information in the possession of the Company relating to this account including details of the account holder to any third party for the purpose of evaluating the applicant(s) credit worthiness or for any other lawful purpose,

d. The Borrower(s) consents that the Company may obtain any information relating to the applicant from any third party including institutions licensed under the Bank of Tanzania Act, Banking and Financial Institutions Act or Licensed Credit Reference Bureau under the laws of the United Republic of Tanzania, if in the Company's opinion such disclosure is necessary for the purpose of evaluating any application made to the Company by the applicant(s) or for any other purpose as may be prescribed by any existing law;

e. Disclose any information in the possession of the Company relating to this application including account details of the account holder to any other party or institution under the international laws and any other laws in order to comply with its obligations pertaining to banking operations.

5. Communication

a. All notices, letters and other communication from the Company shall be sent to the last postal or email address given by the customer, and the date on the Company's copy of such communication is taken to be the date of such dispatch in the absence of proof to the contrary:

b. Any written communication from the Company to the customer including but not limited to any notice given pursuant to these terms and conditions shall be deemed to have been received by the customer, if delivered then at the date and the time of delivery and if sent by post it shall be sufficient to prove that the letter containing the communication was properly stamped and addressed.

c. The customer shall have no claim on the Company for damage resulting from losses delays, misunderstandings, mutilations, duplications or any other irregularities due to transmission of any communication whether to or from the customer, the Company or any third party, by hand delivery, post, fax, telephone telex, or any other means of communication:

d. The Company shall not be held liable for the failure of delivery or receipt of communication by the customer and or exposure of such communication to third parties where the customer fails to provide accurate details of their email and or postal address, including failure to update relevant address details or for any other exposure beyond the control of the Company such as through malicious or unintended access by unauthorized third parties to whom the address provided does not belong or where the address is shared by certain third parties with the customer

6. Joint and Several Liabilities

Where the Borrower is more than one person then all obligations on the part of the Borrower shall be jointly and severally liable for the payment of all indebtedness arising from the use of the facility but no partial or full release by the Company of either of them shall reduce the liability of the other to the Company.

7. Validity of Documents

The Company is not responsible for the authenticity, validity, regularity or value of documents including but not limited to receipts and insurance policies.

8. No Waiver

No relations delays or indulgence on the part of the Company in exercise of any of its rights under these terms and conditions shall operate as a waiver of such rights

9. Jurisdiction of the Courts of Law

The parties herein submit to the jurisdiction of the laws of United Republic of Tanzania in the event of any dispute arising in respect to all terms and conditions contained in this document.

10. Variation and Termination of Relationship

The Company may at any time, upon notice to the Borrower and Insurer terminate or vary its relationship with the Borrower and Insurer. Without prejudice to the generality of the foregoing, the Company may cancel advances which it has granted and require the repayment of outstanding debts resulting there from upon issuance of a seven (7) days' notice or such other shorter period as the Company shall determine

11. Binding

It is agreed that this agreement shall not take effect and shall not be binding on the Company unless and until it is signed by the Company and other parties hereto. It is further agreed that any dispute or difference arising between the parties to this Agreement or in connection with its performance, construction or interpretation shall be referred to arbitration by a single arbitrator in accordance with the provisions of the Arbitration Act. (RE. 2002) or any amendments or replacements thereof whose decision and any determination made pursuant hereto shall be final and binding on the parties hereto.

Declaration:-

I/we have read and fully understood the terms and conditions governing the Insurance Premium Financing facility offered by KMJ (T) LIMITED T/A KMJ FINANCE AND INVESTMENTS and I/we agree that the facility shall be granted solely at the discretion of the Company and hereby agree to indemnify the Company at my/our cost, against any loss or claim arising in relation to this facility. I/we confirm that the above information is correct and true. I/we hereby accept them and will abide by them. I/we further confirm that I/we confirm that I/we have received all the information pertaining to the facility. I/we have independently verified the terms and conditions noted above and where necessary I/we have consulted other persons independent from the Company's officials. I/we understand that the Company reserves the right to decline this application without giving reasons.

